

A Criticism of Congress’ TAKE IT DOWN Act: Why Removal is not Remedy

Jane Starr

Stevens Institute of Technology

**“FEDERAL LAW IS ENACTED, CONTENT GETS
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Abstract

The rapid proliferation of artificial intelligence has intensified concerns about online safety for adults and minors, particularly regarding non-consensual intimate imagery (NCII) and digitally fabricated pornographic content. This paper evaluates recent federal efforts to address these harms, including the enacted TAKE IT DOWN Act (TIDA) and the stalled DEFIANCE Act. Central to this analysis is the imbalance created by TIDA's notice-and-removal framework, which obligates platforms to take down NCII but provides no corresponding private right of action for victims of deepfake abuse. This gap exposes a structural weakness in the current federal response to AI-enabled sexual exploitation, as the DEFIANCE Act, which would create a private right of action and has sat idly on the House floor for over 7 months. This must be incorporated into TIDA to ensure both platform obligations and meaningful remedies for victims.

Introduction

In January of 2024, 14 year old Francesca Mani of Westfield, New Jersey, rose before millions of viewers, attesting at a Press Conference calling for Congress to pass the "Preventing Deepfakes of Intimate Images Act" sponsored by Representative Joe Morelle (D-NY). That past summer, Mani had unknowingly been a victim of abuse by her male peers, through the means of which they weaponized artificial intelligence to use existing images of her face to portray her as nude and committing sexual activities and behaviors. These violating depictions of her were then shared around various group chats and stories via Snapchat. She was not the only victim of this abuse at her school, however she quickly became the face of this case after her and her mother brought it to their school district's attention. [1]

Mani's desperate efforts to retrieve some of her dignity and protect herself against her classmates was met with silence and avoidance from her peers. Only when she contacted her district's congressmen and local news outlets did her story, and this growing problem, begin to gain traction. In fact, the number of non-consensual pornographic deep-fake videos available online has increased nine-fold since 2019. [2]

After months of toiling and relentless self-advocacy, Mani's sufferance finally paved the path for bi-partisan legislation signed into law by New Jersey Governor Phil Murphy in April 2025 that criminalizes deepfake imagery of minors or non-consenting adults, while also allowing victims to sue for up to \$1,000 per image. [3] There are still 9 states in the United States that lack NCII deepfake laws of their own, evincing a significant problem where victims inhabiting those states are left without just remediation. [4]

Statutory Architecture

First introduced in June 2024, the TAKE IT DOWN Act (Tools to Address Known Exploitation by Immobilizing Technological Deepfakes on Websites and Networks) operates as a means of criminalizing the willful creation and publication of Non-Consensual Intimate Imagery (NCII).

This legislation obligates platforms and companies to comply with federal statutes and take down any NCII within 48 hours of notice, criminalizes the act of “knowingly publishing intimate visual depictions or digital forgeries of an identifiable individual,” and requires that digital platforms provide a clear process in which victims can request the removal of sensitive content shared without consent. [5] The Federal Trade Commission (FTC) is the primary enforcer of TIDA, imposing civil penalties of \$53,088 per violation collected by the U.S. Treasury, not the victim. [6] TIDA also criminalizes publication as an indictable offense, carrying prison sentences of up to 2 years for adult targets and up to 3 years if the victim is a minor. [7]

Federal law is enacted, content gets removed, the perpetrator may get charged, and the victim remains scarred with no federal civil remedy. Not only does the Take it Down Act conspicuously omit a private right of action for victims, but it forces reliance on a convoluted patchwork of state NCII statutes, the unsettled Violence Against Women Act, or common-law theories which have notoriously misaligned with the complexities of AI and digital forgeries. [8]

The DEFIANCE (Disrupt Explicit Forged Images and Non-Consensual Edits) Act, which passed the Senate unanimously in January 2026 and remains held at the House desk, would close this gap by amending § 6851 to add a private right of action covering "intimate digital forgeries," with \$150,000 in liquidated damages and a ten-year statute of limitations. [9] Congress's decision to split the regulatory response across two bills produces a structurally incoherent enforcement system that prioritizes platform compliance over restoration of justice for victims, thus the Take It Down Act should be amended to incorporate the DEFIANCE Act's civil remedy rather than waiting for pending separate House action.

Public Enforcement Gaps

The primary problem for public enforcement is rooted in agencies' misunderstandings, underpreparedness, and negligence. According to an empirical analysis in *Cyberstalking: A Growing Challenge for the U.S.*

Legal System by the Office of Justice Programs, the number of cyberstalking filings in the U.S. has risen significantly between 2010 and 2014, while actual convictions remain low. [10] The legal system is short of the knowledge, technology, and associated resources needed to address such cyberstalking cases, similarly as they are with the newly arising dilemma of NCII deepfake abuse. [11]

Matthew C. Stephenson, in his book *Public Regulation of Private Enforcement*, posits that private enforcement in any form, including a private right of action for victims, can foment innovation in the form of new legal theories, novel techniques of investigation, and alternative approaches to dispute settlements. [12] Stephenson further suggests that private litigation in the U.S. has paved the way towards many precedents in antidiscrimination and antitrust law, showing how lawyers forge social change as a concomitant of legal challenges. [13] Private litigation fills the gaps that agency enforcement cannot mend, evincing the argument that Congress's failure to amalgamate TIDA's compliancy requirement with DEFIANCE's private right of action fails to serve rightful justice to American citizens.

One of the most evident defeats of the Take it Down Act is revealed in the understanding that the legislation was conceptually intended to fix discrepancies in NCII state statutes, yet it forces reliance on uncertain state interpretations that vary depending on jurisdiction. [14] Experts have noted that deepfakes in the legal forum are typically treated as “isolated problems,” falling variously under pornography law, privacy statutes, or sexual abuse laws depending on the state. [15] The Take it Down Act does little to coordinate state efforts towards recovering damages for victims, leaving them both unfulfilled and lost at deciphering whichever state’s law happens to apply.

Public Enforcement Gaps

A concept most worthy of consideration is the associated emotional and reputational damages that victims incur after NCII abuse. Danielle Citron and Mary Anne Franks in *Criminalizing Revenge Porn* discuss emotional and financial harms imposed on victims, including loss of sexual privacy and autonomy, humiliation, shame, and detriments to

self-expression. [16] Financial harms include costs of “reputation repair,” legal assistance fees, takedown efforts, and reputation-management services that can bring about job loss and greater economic hardship. [17] The Take it Down Act fails to account for any of these associated costs, showcasing a negligent governing effort to support victims of deepfake abuse.

Legislative Splits

To understand why Congress may have split these pieces of legislation, it is important to explore different hypotheses. The first hypothesis is embedded in anxieties of Section 230, claiming that a private right of action against platforms would collide with the logic of § 230, which rids websites and platforms of liability if they host user-created content. The Take It Down Act’s FTC-only platform enforcement evades any potential collision with § 230 because it does not shield platforms from federal criminal prosecution, as asserted through case law in *FTC v. Accusearch*. [18]

However, a private right of action under DEFIANCE against platforms can potentially hold platforms accountable if they promote or solicit illegal content, deeming them as “creators” and exempting them from § 230 immunity. A response to this argument alleges that the DEFIANCE Act’s private right of action is enforceable against creators and distributors, not platforms. The *Doe v. Internet Brands* decision extends this idea further, framing the concept that simply complying with federal law to remove content under TIDA does not constitute a platform acting as a publisher or creator, therefore evading confusion regarding immunity under Section 230. [19]

Further elucidating Congress’ rationale, fears over constitutional complications, First Amendment erosion, and political viability may have warranted the separation of TIDA and DEFIANCE. The cost of such precaution, however, is most evident within the gaps of the fragmented single-issue bills. A unified bill with civil remedy provisions delineated in the DEFIANCE Act serving as amendments to TIDA would harmonize definitions of AI-generated content, provide victims with a single pathway for both a right of action and content removal, and ensure

consistent regulation. Efforts to harmonize civil remedies with federal statutes have proven successful in the past, such as the Telephone Consumer Protection Act (TCPA) featuring both FCC regulatory authority and private rights of action. [20]

Policy Proposal

Amending the TAKE IT DOWN ACT to incorporate the DEFIANCE Act's civil remedy as a tangential cause of action would prove feasible, most importantly by merging the damages provision into the platform-obligation framework of TIDA. Section 230 would remain intact by maintaining immunity for platforms complying with notice-and-removal requirements while declining immunity for cases where platforms enable such heinous content to be shared. This would incorporate the DEFIANCE Act's ten-year statute of limitations stipulation, considering that victims often discover they have been targeted long after content is initially generated. Victims could recover up to \$150,000 in liquidated damages, while the mens rea requirements—including lack of consent, clear identifiability, and a reckless-disregard standard—would be upheld under a single amendment to TIDA.

Conclusion

For survivors and advocates of NCII deepfake abuse, it is a long and formidable legal battle to restore their dignity. This criticism of the Take it Down Act is not to underscore the efforts of Congress in combating this unfamiliar societal dilemma, but rather to enlighten politicians and citizens alike of the dire need for strict governance of the online realm. Not only does the government have the responsibility to hold platforms and perpetrators accountable, but by establishing a private right of action they must further provide vulnerable victims a chance to reclaim themselves from the hands of the perpetrator. As targeted NCII deepfake abuse proliferates and puts the livelihood of adults and minors in peril, the two-track problem between TIDA and DEFIANCE evinces the notion that removal is not remedy, and significant governmental action must be taken to repair the gap between takedown and recovering damages.

Notes

[1] Kaylee Williams, “Minors Are on the Frontlines of the Sexual Deepfake Epidemic — Here’s Why That’s a Problem,” Tech Policy Press, October 10, 2024, <https://www.techpolicy.press/minors-are-on-the-frontlines-of-the-sexual-deepfake-epidemic-heres-why-thats-a-problem/>.

[2] United States Senate Committee on the Judiciary, “Durbin Successfully Passes Bill to Combat Nonconsensual, Sexually-Explicit Deepfake Images,” January 13, 2026, <https://www.judiciary.senate.gov/press/dem/releases/durbin-successfully-passes-bill-to-combat-nonconsensual-sexually-explicit-deepfake-images/>.

[3] Williams, “Minors Are on the Frontlines.”

[4] Recording Law, “Deepfake & AI Voice Cloning Laws by State (2026),” July 9, 2026, <https://www.recordinglaw.com/us-laws/deepfake-laws/>.

[5] Congressional Research Service, “The TAKE IT DOWN Act: A Federal Law Prohibiting the Nonconsensual Publication of Intimate Images,” May 20, 2025, <https://www.everycrsreport.com/reports/LSB11314.html>.

[6] Federal Trade Commission, “Complying with the Take It Down Act,” May 8, 2026, <https://www.ftc.gov/business-guidance/resources/complying-take-it-down-act>.

[7] Eric Rosen, “Navigating the TAKE IT DOWN Act in Litigation,” Dynamis LLP, June 16, 2025, <https://www.dynamisllp.com/knowledge/navigating-take-it-down-act-in-litigation>.

[8] U.S. Department of Justice, “Violence Against Women Act,” June 10, 2026, <https://www.justice.gov/ovw/violence-against-women-act>.

[9] GovTrack.us, “Summary of S. 1837: DEFIANCE Act of 2025,” n.d., <https://www.govtrack.us/congress/bills/119/s1837/summary>.

[10] Office of Justice Programs, “Cyberstalking: A Growing Challenge for the U.S. Legal System,” n.d., <https://www.ojp.gov/library/publications/cyberstalking-growing-challenge-us-legal-system>.

[11] *Id.*

[12] Matthew C. Stephenson, “Public Regulation of Private Enforcement: The Case for Expanding the Role of Administrative Agencies,” *Virginia Law Review* 91 (2005), <https://virginialawreview.org/wp-content/uploads/2020/12/93.pdf>.

[13] *Id.*

[14] U.S. Representative Debbie Dingell, “Dingell, Colleagues Reintroduce Bipartisan TAKE IT DOWN Act to Protect Victims of Non-Consensual Intimate Imagery,” January 22, 2025, <https://debbiedingell.house.gov/news/documentsingle.aspx?DocumentID=5397>.

[15] Blog Admin, “The Take It Down Act Shows the Fragmentation of Policies Addressing Deepfakes and Generative AI,” LSE United States Politics and Policy (blog), September 23, 2025, <https://blogs.lse.ac.uk/usappblog/2025/07/10/the-take-it-down-act-shows-the-fragmentation-of-policies-addressing-deepfakes-and-generative-ai/>.

[16] Danielle Keats Citron and Mary Anne Franks, “Criminalizing Revenge Porn,” *Digital Commons at University of Maryland Carey Law* 49, no. 2 (January 1, 2014): 345, https://digitalcommons.law.umaryland.edu/fac_pubs/1420.

[17] *Id.* at 345.

[18] “Internet Law — Communications Decency Act — Federal District Court Denies § 230 Immunity to Website That Solicits Illicit Content,” *Harvard Law Review* 121 (2008), https://harvardlawreview.org/wp-content/uploads/2008/05/FTC_v_accusearch.pdf.

[19] HLR, “*Doe v. Internet Brands, Inc.*,” *Harvard Law Review*, March 24, 2023, <https://harvardlawreview.org/print/vol-130/doe-v-internet-brands-inc/>.

[20] Recording Law, “TCPA Explained: Robocall, Text, and Telemarketing Law (2026),” July 11, 2026, <https://www.recordinglaw.com/us-laws/tcpa/>.

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